



File No.: EXP202309817

RESOLUTION OF

PROCEDURE OF WARNING

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on July 4, 2023. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons on which the complaint is based are as follows:

The claimant states that the respondent is responsible for a video surveillance system installed in their home which, due to its location and orientation, is capable of capturing images of both public roads and areas belonging to the claimant. It is noted that upon contacting the respondent, they assured the claimant that their cameras do not capture areas belonging to the claimant, having sent a photograph of what one of the cameras would capture, in which the public road is visible.

The claimant provides images of the camera locations and the photograph sent by the respondent to the claimant, in which the capture of the public road is evident (Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent on 12/07/23, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

THIRD: On 14/08/23, a written response was received from the respondent stating the following:

- That they have a sign outside in accordance with current regulations.
- Screenshot of what is observed with the installed cameras (photograph 1 capturing private garage).

FOURTH: On October 4, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FIFTH: On April 3, 2024, the Director of the Spanish Agency for Data Protection decided to initiate a warning procedure against the respondent for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

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SIXTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on 29/04/24 as evidenced by the acknowledgment of receipt in the file.

SEVENTH: On 07/05/24, a written response was received from the respondent regarding the described, stating the following:

“(…) alleging in reference to the file to demonstrate my good faith and adapt to the regulations. I have decided to dismantle the previously installed cameras (...) for two basic cameras, which are fixed and do not have the possibility of automatic rotation to record other angles (...) Attached are photos.

A frame (1-2) is provided showing the capture angle of the two devices installed on their property.

In view of all that has been acted upon by the Spanish Agency for Data Protection in this procedure, the following facts are considered proven,

PROVEN FACTS

First. The facts arise from the complaint dated 04/07/23, through which the alleged poor orientation of the cameras installed by the respondent is transferred, considering that it affects public space and the

respondent's private space.

Second. It is accredited that B.B.B. is the main responsible for the installation, who does not deny having a video surveillance system for security reasons.

Third. It is accredited that there is an informative sign at the entrance of the home indicating how to exercise rights before the main responsible party.

Fourth. It is accredited that camera 1 of the installed system is oriented exclusively towards the private parking area of the home, while camera 2 is oriented towards an access window fulfilling a protective function for the home.

Fifth. It is not accredited that data of third parties is being processed, nor that the devices in question affect the claimant's private space.

LEGAL GROUNDS

I

Competence

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In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

In the present case, the complaint dated 04/07/23 is examined, through which the "presence of a video surveillance system" that could affect a public transit area without justified cause is reported.

The facts are limited to the lack of information provided by the complainant regarding the total number of installed cameras, as only a photograph of the dome camera located in the exterior area facing their garage is provided, while the system consists of two cameras.

Article 5.1 c) of the GDPR states the following: Personal data shall be: "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')."

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements established by the applicable regulations.

The installation of such devices must have the mandatory informative sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

In any case, the cameras must be oriented towards private space, avoiding intimidating neighboring residents with such devices, as well as monitoring transit areas without justified cause.

Moreover, such devices cannot obtain images of public space, as this is the exclusive competence of the State Security Forces and Corps, in accordance with the current Organic Law 4/1997, of August 4, which regulates the use of video cameras by the Security Forces and Corps in public places.

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Therefore, the capture of images of public spaces by private surveillance cameras must be limited to

what is strictly necessary, applying the principle of proportionality in all cases.

It is worth noting that even in the case of a "dummy" camera, it must be preferably oriented towards private space, as it is considered that such devices can affect the privacy of third parties, who may feel intimidated by the belief that they are subject to permanent recording.

Individuals cannot install devices for capturing images of public space and/or the transit of third parties, outside the cases permitted by the regulations.

The purpose of such devices must be the security of the property and its inhabitants, avoiding the infringement of the rights of third parties who may feel intimidated by them.

The cameras must be limited to the protection of the property owned by the individual in such a way that they do not affect the area of third parties who may feel intimidated by them, as it affects their free transit area.

III

It should be noted that on 07/05/24, a written statement of allegations from the complained party was received, in which they state that they have removed the previous video surveillance system, reinstalling two fixed cameras (No. 1 and 2) oriented towards their private area.

It is confirmed that the system has an informative sign indicating that it is a video-monitored area, specifying how to exercise rights under the current applicable regulations.

Regarding the first device, it is oriented towards their private area, providing documentary evidence that supports this fact.

The complained party alleges concerning the second installed device, stating the change of device to a fixed one, exclusively oriented towards the window area of their property, with the aim of better protecting the property.

Article 4, section 3 of Instruction 1/2006, of November 8, from the Spanish Agency for Data Protection, on the processing of personal data for surveillance purposes through camera or video camera systems states:

3. Cameras and video cameras installed in private spaces may not capture images of public spaces unless it is essential for the intended surveillance purpose, or it is impossible to avoid it due to their location. In any case, any unnecessary data processing for the intended purpose must be avoided.

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Therefore, the dome camera, which is the subject of the main claim, has been removed and replaced with a fixed camera oriented towards the area of the private property of the respondent, without affecting the public area and/or the private area of third parties.

IV

The principle of the presumption of innocence prevents attributing an administrative infringement when there is no obtained and verified evidence of the facts that motivate the accusation or of the alleged infringer's involvement in them. Applying the principle "in dubio pro reo" in case of doubt regarding a specific and determined fact, which obliges in any case to resolve such doubt in the most favorable manner for the interested party.

The presumption of innocence must govern without exceptions in the sanctioning system and must be respected in the imposition of any sanctions, as the exercise of the *ius puniendi* in its various manifestations is conditioned upon the play of evidence and a contradictory procedure in which one's own positions can be defended. In this sense, the Constitutional Court in its Judgment 76/1990, of 26/04, considers that the right to the presumption of innocence entails: "that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof corresponds to the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the result of the evidence presented, freely evaluated by the sanctioning body, must translate into an acquittal ruling.

The presumption of innocence governs without exceptions in the sanctioning system and must be

respected in the imposition of any sanction, whether criminal or administrative (TCo 13/1981), as the exercise of the sanctioning right in any of its manifestations is conditioned upon the play of evidence and a contradictory procedure in which one's own positions can be defended.

According to this principle, no sanction can be imposed based on the culpability of the accused if there is no evidentiary activity that, in the appreciation of the authorities or bodies called to resolve, destroys this presumption (TCo Auto 3-12-81).

V

After analyzing the allegations and evidence provided by the respondent, it can be concluded that the system in question fulfills a protective function for the home, affecting only its private space, without any evidence of affecting public space and/or the private space of third parties.

It is noted that the criteria for installing video surveillance cameras are published in the Video Surveillance Guide of this agency, which is easily accessible on the website www.aepd.es.

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Based on the above, it is deemed appropriate to order the filing of the current procedure as no administrative infringement has been substantiated in the matter at hand.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ORDER the FILING of the current procedure as no administrative infringement has been substantiated in the matter at hand.

SECOND: TO NOTIFY this resolution to Mr. B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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